

**Amador Superior Court
Monday, February 3, 2020
Andrea Sexton
DEPT 3**

Tentative Rulings are proposed as orders to be issued at the hearing and are posted in advance for the convenience of the parties and their counsel. Each matter on calendar will be called and parties are expected to attend. For those matters where the parties are not ordered to appear and either the parties agree or no objection is made at the hearing, the Court routinely adopts the tentative ruling as the ruling in the matter.

For privacy purposes on the publicly posted version of this document the parties' last names have been replaced by keeping only the first letter followed by three x's (example, John Doe = John Dxxx).

Case Number	Primary Party / Attorney	8:30:00AM Calendar	Secondary Party / Attorney
<u>2</u> 12-DCS-03424	COUNTY OF AMADOR/ CSCSA		XXXX, JASON/ Interested Party: XXXX, REBECCA

EVENT: LCSA MOTION TO MODIFY CHILD SUPPORT

ACTION: FAMILY SUPPORT

EVENT NOTES: N/A

Tentative Ruling:

The Agency filed a motion for modification of child support at the request of Respondent. Current support orders of 2/26/2018 set Guideline support at \$671 per month, payable by Respondent (Father). Respondent alleges a change of income occurred and seeks modification.

There is no tentative ruling. The court shall hear from the parties at the time of hearing. Respondent's income and expense declaration filed December 18, 2019 indicate she is no longer employed and that he took a "compromise and release" as a result of a workplace injury. Respondent is ordered to bring to court all relevant documents regarding his "compromise and release." Respondent shall be prepared to address the court regarding current average monthly expenses and payment of these expenses.

The court shall adopt updated springing language indicating that any prior orders which include language of administrative relief without further order of the court are deemed no longer applicable.

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Case Number	Primary Party / Attorney	8:30:00AM Calendar	Secondary Party / Attorney
<u>3</u> 15-DCS-03757	COUNTY OF AMADOR/ CSCSA		XXXX, JOSHUA/ Interested Party: XXXX, ALYSSA

EVENT: LCSA MOTION TO MODIFY CHILD SUPPORT

ACTION: FAMILY SUPPORT

EVENT NOTES: N/A

Tentative Ruling:

The Agency filed a motion for modification of child support at the request of Respondent. Current support orders of 9/30/2019 set Guideline support at \$374 per month, payable by Respondent (Father). Respondent alleges a change of physical custody as a change of circumstances.

There is no tentative ruling. The court shall hear from the parties at the time of hearing.

Respondent shall provide the court with orders confirming the change of physical custody. Respondent shall provide copies of his two most recent paystubs for review in conjunction with his income and expense declaration (FL-150) filed December 27, 2019. Other Parent shall file an updated income and expense declaration (FL-150) with supporting documentation.

The court shall adopt updated springing language indicating that any prior orders which include language of administrative relief without further order of the court are deemed no longer applicable.